

CHAPTER 71.

An Act to amend the Law relating to Housing in Scotland, and for purposes in connexion therewith.

[23rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to hire dwelling-houses compulsorily for housing of the working classes.
53 & 54 Vict. c. 70.

1.—(1) For the purpose of providing houses, any authority, being a local authority within the meaning of Part III. of the Housing of the Working Classes Act, 1890, shall have power to hire compulsorily any house which is suitable, without reconstruction, and has not been in the bonâ fide occupation of any occupier at any time during a period of at least three months immediately preceding the date on which the local authority give notice of their intention to exercise their powers under this section :

Provided that—

- (a) this section shall not apply to any house erected after or in the course of erection on the second day of April, nineteen hundred and nineteen, or to any house acquired for the public service or for the purpose of the statutory duties or powers of a statutory undertaking and reasonably required for those purposes, or to any house which is required for the occupation of a person engaged on work necessary for the proper working of an agricultural holding ;
- (b) the term for which a house may be hired under this section shall be from the date of the hiring until the twenty-eighth day of May, nineteen hundred and twenty-three ; and
- (c) nothing herein contained shall prevent a local authority hiring compulsorily a house which may be adapted for occupation by more than one family at a reasonable cost having regard to the period of hiring.

(2) For the purposes of this section, a house shall be deemed not to have been in bonâ fide occupation at any time during the period of three months as aforesaid, if such house has not been continuously inhabited as a dwelling-house for at least one week in the said period of three months.

(3) The provisions set out in the First Schedule to this Act shall have effect with respect to the compulsory hiring of houses under this section.

Amendment of s. 1 of 9 & 10 Geo. 5. c. 99.

2. Subsection (2) of section one of the Housing (Additional Powers) Act, 1919 (which prescribes the conditions under which grants may be made to persons constructing houses), shall have

effect as though two years were therein substituted for twelve months.

Every regulation made by the Scottish Board of Health (in this Act referred to as "the Board") prescribing the conditions under paragraph (a) of the said subsection, with which houses whereof the construction is begun after the thirty-first day of March, nineteen hundred and twenty-one, shall comply, shall be laid before both Houses of Parliament as soon as may be after it is made, and, if an address is presented by either House within twenty-one days on which that House has sat next after any such regulation is laid before it praying that the regulation may be annulled, His Majesty in Council may annul the regulation, but without prejudice to the validity of anything previously done thereunder.

3. Section five of the Housing (Additional Powers) Act, 1919 (which gives power to local authorities to prohibit building operations which interfere with the provision of dwelling-houses), shall be amended as follows :—

*Amendment
of s. 5 of
9 & 10 Geo. 5.
c. 99.*

- (1) The powers and duties of a local authority under the said section may, subject to such terms and conditions as may be imposed by the authority, and subject as hereinafter provided, be exercised and performed by a committee appointed under section eighty-one of the Housing of the Working Classes Act, 1890, as amended by section thirty of and the Second Schedule to the Housing, Town Planning, &c. (Scotland) Act, 1919 :

Provided that any order made under the aforesaid section five of the Housing (Additional Powers) Act, 1919, by such a committee shall be forthwith submitted to the local authority and taken into consideration by the authority at their next meeting, and shall not continue in force unless confirmed by the authority :

- (2) For the purpose of carrying out the provisions of the said section in special cases, any local authorities having powers under the said section may appoint a joint committee consisting as to a majority of its members of members of their own bodies or may otherwise act jointly, and, where any local authorities so appoint a joint committee, the said section shall have effect as though the districts of those authorities were a single district and as though the joint committee were the local authority for that district :
- (3) Where the Board are satisfied that the provision of dwelling accommodation within the district of a local authority is or is likely to be hindered—

(a) by reason of the construction in the district of some other authority of buildings of less public

importance than the provision of dwelling accommodation; or

(b) by reason of the failure of the local authority to make adequate use in their district of their powers under the said section as amended by this section;

the Board, after giving to the local authority concerned fourteen days' notice and an opportunity of being heard, may make such order as they think proper in the circumstances of the case for prohibiting or restricting the construction of works or buildings in the district in question;

An order made by the Board under the foregoing provision shall not extend to any works or buildings authorised or required by, under, or in pursuance of any Act of Parliament, and shall be subject to the like appeal as if it were an order made by a local authority under the said section:

- (4) The tribunal to which appeals under subsection (2) of the said section are to be referred by the Board shall, instead of being a standing tribunal consisting of five persons to be appointed by the Board, be constituted as follows:—

(a) The Board shall constitute a panel of persons to act as chairmen of the tribunal, and a panel of persons to act as ordinary members of the tribunal;

(b) The tribunal shall consist of one person selected by the Board from the panel of chairmen and not less than two persons selected by the Board from the panel of ordinary members;

(c) The tribunal shall sit in such number of divisions as the Board may from time to time determine:

- (5) It is hereby declared that the power of the Board to make rules of procedure under subsection (2) of the said section includes power to make rules with respect to the hearing of appeals by the tribunal:

- (6) The expenses of an appeal under subsection (2) of the said section shall be in the discretion of the tribunal hearing the appeal, and the tribunal may direct to whom, by whom, and in what manner those expenses or any part thereof are to be paid, and may settle the amount of the expenses to be so paid or any part thereof:

An order of the tribunal for payment of expenses may, by leave of the Court of Session, be enforced in the same manner as an order of that Court, and provision may from time to time be made by Act of Sederunt for conferring on any officer of the Court

of Session jurisdiction to grant leave to enforce any such order in the same manner as a judgment or order of the Court to the same effect :

- (7) The following shall be substituted for subsection (3) of the said section :—

“(3) An order made under this section shall have effect as from the date specified in the order in that behalf, but any person who is aggrieved by and has appealed against the order may apply to the tribunal of appeal, and the tribunal may, on such terms and conditions as it thinks fit, suspend the operation of the order pending the determination of the appeal or for such shorter period as it thinks fit.”

4.—(1) Where a housing scheme approved under section one of the Housing, Town Planning, &c. (Scotland) Act, 1919, is being carried into effect by a local authority outside their own district, that authority shall, subject to the approval of the Board, have power—

Execution of works, &c., by local authorities outside their own districts in connexion with housing schemes and otherwise.
9 & 10 Geo. 5. c. 60.

- (a) to execute any works which are necessary for the purposes of, or are incidental to the carrying out of, the scheme, subject to entering into agreements with the local authorities of any districts in which the scheme is being carried out as to the terms and conditions on which any such works are to be executed :

- (b) to borrow money for the purpose of defraying any expenses (including, if the Treasury approve, interest payable in respect of any period before the completion of the scheme or a period of five years from the date of borrowing, whichever period be the shorter, on money borrowed under this section) incurred by the local authority in connexion with any such works as aforesaid, and that on the security of such assessment as the Board may designate for the purpose :

- (c) to advance to any such local authority as aforesaid such sums as may, by reason of any agreement made under this section, be required by that authority in connexion with the construction by the authority of any such works as aforesaid.

(2) The local authority of any district in which a scheme is being carried out as aforesaid shall have power, with the approval of the Board, to borrow money for the purposes of any agreement entered into by the authority under this section, and that in the same manner as if such works as aforesaid had been executed by the authority.

5. The power conferred on the Board by subsection (2) of section seven of the Housing (Additional Powers) Act, 1919, of imposing by general or special order conditions with regard to the

Extension of s. 7 (2) of 9 & 10 Geo. 5. c. 99.

raising by a county council of money to be lent by the council to a local authority within their area for the purposes of the Housing (Scotland) Acts, 1890 to 1919, shall be deemed to include and always to have included a power to impose conditions with respect to the borrowing by a local authority from a county council of money so raised.

Extension of
s. 14 (1) (d) of
9 & 10 Geo. 5.
c. 60.

6. The power conferred on local authorities by paragraph (d) of subsection (1) of section fourteen of the Housing, Town Planning, &c. (Scotland) Act, 1919, of selling houses shall include power with consent of the Board upon any such sale to agree to the price being paid by instalments or to payment of part of the price being secured by bond and disposition in security or otherwise upon the subjects sold.

Rate of
interest on
certain
advances and
expenses.
62 & 63 Vict.
c. 44.
9 Edw. 7.
c. 44.

7. The rate of interest on advances under section one of the Small Dwellings Acquisition Act, 1899, and on any expenses incurred by a local authority under subsection (5) of section fifteen of the Housing, Town Planning, &c. Act, 1909, shall be such rate as the Secretary for Scotland, with the approval of the Treasury, as respects advances under the said section one and the Board, with the approval of the Treasury, as respects expenses incurred under the said subsection (5) may from time to time by order direct.

Amendment
of s. 31 of
9 & 10 Geo. 5.
c. 60, and of
s. 10 of 9 & 10
Geo. 5. c. 99.

8. In section thirty-one of the Housing, Town Planning, &c. (Scotland) Act, 1919, and in section ten of the Housing (Additional Powers) Act, 1919, the words "the issue of any share or loan capital with interest or dividend exceeding the rate for the time being prescribed by the Treasury," shall be substituted for the words "the payment of any interest or dividend at a rate exceeding six per centum per annum" and for the words "payment of any interest or dividend at a higher rate than six per centum per annum," respectively, and any public utility society or authorised association shall have and shall be deemed to have had power, notwithstanding anything in their rules or constitution prohibiting the payment of any interest on loan capital at a rate exceeding six per centum per annum, to raise money on loan at a rate of interest not exceeding the rate for the time being prescribed by the Treasury as aforesaid.

Citation,
extent, and
repeal.

9.—(1) This Act may be cited as the Housing (Scotland) Act, 1920.

(2) The Housing (Scotland) Acts, 1890 to 1919, the Housing (Additional Powers) Act, 1919, as that Act applies to Scotland, and this Act may be cited together as the Housing (Scotland) Acts, 1890 to 1920.

(3) This Act shall apply to Scotland only.

(4) The enactments specified in the Second Schedule to this Act are hereby repealed to the extent mentioned in the third column of that schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

PROVISIONS AS TO THE COMPULSORY HIRING OF HOUSES BY LOCAL AUTHORITIES.

1. Where a local authority propose to hire a house compulsorily under this Act, they may give notice in the prescribed manner to the owner of the house of their intention so to do and may make an order for the purpose in the prescribed form.

2. The order shall be published, and twenty-one days' notice thereof shall be given to the owner and any tenant of the house in the prescribed manner.

3. The order shall be submitted to the Board and shall be of no effect until it has been confirmed by them, and prior to such confirmation the owner and tenant, or either of them, shall be entitled to be heard by the Board in opposition to the confirmation of such order: Provided that, in the case of a furnished house, the Board shall not confirm the order unless, after giving all parties concerned an opportunity of being heard, the Board are satisfied that greater hardship would be caused by refusing to confirm than by confirming the order, and provided further that the Board shall not confirm any order where the estimated cost of any alterations or adaptations (including in the case of a furnished house, the cost of removal, storage, insurance, depreciation in value, and reinstatement of furniture) is, in the opinion of the Board, in excess of what is reasonable, having regard to the period of hiring; confirmation by the Board shall be conclusive evidence that the requirements of this Act have been complied with, and that the order has been duly published and made and is within the powers of this Act.

4. No compensation otherwise than by way of rent shall be payable in respect of the house compulsorily hired, and in the case of a furnished house no compensation otherwise than as aftermentioned shall be payable in respect of the furniture in the house or the loss of profit arising from the letting of the house as a furnished house, and in determining the amount of the rent or other sums payable no additional allowance shall be made on account of the hiring being compulsory.

5. Notwithstanding that the amount of the rent or other sums payable has not been determined, the local authority shall be entitled to enter into possession of the house as soon as the order has been confirmed by the Board.

6. In default of agreement as to the amount of rent or other sums to be paid by the local authority, or as to the other terms of the tenancy (including the delivery up of the house in proper condition), the amount of the rent or other sums payable or the other terms shall be fixed by an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and the c. 57. 9 & 10 Geo. 5.

provisions of that Act shall apply for the purpose, subject to such necessary adaptations as may be prescribed.

7. In fixing the amount of rent to be paid, regard shall be had to any sums which may have been, or may require to be, spent by the local authority in putting the house into a condition reasonably fit for human habitation.

8. Where the amount which was originally estimated as sufficient to put the house into a state reasonably fit for human habitation subsequently appears to the local authority not to be sufficient for that purpose, the local authority may, with the consent of the Board, apply to have the rent payable re-assessed by the official arbiter.

9. In the case of the compulsory hiring of a furnished house, there shall be payable to the person to whom the furniture in the house belongs such compensation in respect of the removal, storage, insurance, depreciation in value and reinstatement of the furniture as the official arbiter aforesaid shall, in default of agreement, determine; and, if the furniture shall not have been removed prior to the date when the local authority enter into possession of the house, the local authority may make arrangements for the removal and storage of the furniture.

10. In this schedule the expression "prescribed" means prescribed by the Board, and the expression "owner" has the same meaning as in the Public Health (Scotland) Act, 1897.

60 & 61 Vict.
c. 38.

Section 9.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
62 & 63 Vict. c. 44.	The Small Dwellings Acquisition Act, 1899.	Subsection (3) of section one.
9 Edw. 7. c. 44.	The Housing, Town Planning, &c. Act, 1909.	In subsection (5) of section fifteen the words "at a rate not exceeding five pounds per centum per annum."